

The Third, is Page 61. l. 34. *The Kings Counsel assembled in the Starchamber; The Lord Cromwells case*, Rot. Cl. 28 H. 6. so the Margin; (and that as in a Court of Justice to punish riots, as the Author intends by placing it under his Title *Of the Honourable Court of Starchamber*, and inserting it in the midst of other cases there sentenced. In which there is a double mistake; First, in the quotation of Rot. Cl. 28 H. 6. and that in grosse: wherein there is not one syllable to that purpose: when as the case of the Lord Cromwell he cites and meant, is mentioned only in Rot. Parl. Anno 28 H. 6. nu. 56. in the Commons impeachment of *Talboys* in that Parliament. 2ly. That the *Lords of the Kings Counsaile* assembled then in the *Starchamber*, as a *Court*, not as in the *Kings Counsaile house sitting the Parliament*, about the affairs thereof; upon which account they then met in it: where *William Talboys*, a Common Murderer, & Breaker of the Peace, accompanied with divers other riotous people, arrayed with *Jacks, Salletes, swords and glaives in manner of warre*, intended maliciously to slay and murder the Lord *Cromwell*, the King being there at that time in his High and Royal Court of Parliament: *The which great riot thus done in the fourme aforesaid*, (as the Commons expressly declare in their appeachment of him for it, in that Parliament) is one of the gristeft, beynous, and most odious riots that hath been seen in your time, or in the time of your Progenitors, and most perillous ensample to alle misdoers and riotours, if this be not openly, duely and discreetly punished. Of which riot and offense so done in your said Palays (where many great Lords of your Counsaile by your high command were assembled in your Counsaile house called the *Sterre Chamber*, within your Palapes of *Westminster*) wee your Commons of this your Realm in this your present Court of Parliament assembled, accuse and appeache the said *William Talboyes*. Beseeching your High and most Noble Grace of your great Righteousnesse; that this our Petition may be enacted in this your High and Royal Court of Parliament: wherein they prayed, That the said *William Talboyes* might be sent Prisoner to the Tower of London, and there kept without bayl or mainprize for 12. moneths space next after such Commitment, and brought to answer all Indictments against him for it, and other riots, befoze the King and his Justices in his Bench within the said time: And that if the Constable of the Tower or his Lieutenant should suffer him to escape or go at large out of the Tower, they should forfeit the sum of *40. lb.* the one moiety to the King, the other to him who would sue for the same against the Constable and Lieutenant. To which Article of the Commons Petition and Bill the King assented. So as this Record and Case hath no relation at all to the *Starchamber* as a Court, nor yet to its Jurisdiction to punish notorious riots against any Lords of the Counsil sitting in it; but only to the * *Priviledge of Parliament*, their Members, and the *Kings Palace*, sitting Parliaments, and to the Jurisdiction of the *Kings Bench* to punish riots, to which this transcendent Riot was specially recommended by the Commons Petition and Impeachment, not to the *Starchamber Court*.

* See the 4th Part of My Brief Register &c. p. 732, to 735.

In his Chapter of Precedency. Page 360. line 24, 25. he writes. *The same King created Edward of Haddam to be Earl of Richmond, and granted him precedency before all other Earls, and also created Jasper of Hatfeild Earl of Pembrock, and gave him precedency before all other Earls, next to his Brother Earl of Richmond: omitting Rot. Parl. An. 31 H. 6. nu. 50, 51. by which they were created Earls, and had this precedency given them in and by Parliament.* And, Page 364. line 13, &c. He observes. *In ancient time the Archbishops and Bishops had great precedency, even before the Brother of the King, as appears by the Parliament Roll of 18 E. 1. and many others; which continued till it was altered by Ordinance of Parliament in the reign of King Henry the 6, as it appears by a Roll of Parliament in that Kings reign, entred in the back of the Parliament Roll before all Dukes & Great Officers of State: but that they took place, and had precedency of them in all Parliaments and Counsils, cannot be inferred from thence.*